

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 26, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03675

WOOLEN v. THE DAVEY TREE EXPERT COMPANY

DEFENDANTS’ MOTION TO STRIKE

The motion to strike is moot. Plaintiff filed a first amended complaint on June 12, 2026.

No. 24CV01784

LY v. SANTA CRUZ SEASIDE COMPANY

PLAINTIFF’S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

Plaintiff’s motion is denied.

I. BACKGROUND

Plaintiff Van Ly sued defendant Santa Cruz Seaside Company for negligence/premises liability, nuisance, intentional infliction of emotional distress (“IIED”), breach of contract, and fraudulent concealment after staying at the 18-room hotel owned by defendant (Sea & Sand Inn, 201 W. Cliff Drive, Santa Cruz) in October 2023 which she says was infested with bed bugs.

On October 31, 2024, this Court sustained defendant’s demurrer with leave to amend as to plaintiff’s causes of action for IIED, breach of contract, and fraudulent concealment reasoning that there were no allegations describing the nature and extent of plaintiff’s suffering or how defendant’s conduct exceeded all bounds of that usually tolerated in society, no facts showing